हैदराबाद विश्वविद्यालय
UNIVERSITY OF HYDERABAD

Minutes of the Special Meeting of the Executive Council held at 11:00 a.m. on March 20, 2025, in the Conference Hall at the Administration Building

Members Present:

Prof. Basuthkar J. Rao	Vice-Chancellor and *ex officio* Chairman
Prof. Pravesh Kumar Srivastava	Member, Visitor's nominee
Dr. B. Jagadeesh	Alumni Nominee
Prof. Atul Negi	Dean, School of Computer and Information Sciences
Prof. Jai Prakash Gautam	Dean, School of Engineering Sciences & Technology
Prof. Saroj Panigrahi	Dean, School of Mathematics and Statistics
Prof. Anand K. Kondapi	Dean, School of Life Sciences
Prof. T.P. Radhakrishnan	Seniormost Professor, School of Chemistry
Dr. C. George Tharakan	Seniormost Associate Professor, Department of Anthropology
Dr. P. Anupama	Seniormost Assistant Professor, SCIS
Dr. Devesh Nigam	Registrar, *ex-officio* Secretary
Shri B. Srinivas	Finance Officer, Special Invitee
Shri P. Thukaram	Controller of Examinations (i/c), Special Invitee

Prof. Manisha Sharma and Prof. Vandana Mishra, the Visitor's nominees could not attend the meeting due to their prior commitments.

The following officials were invited to the meeting to assist the Council:

1. Shir N.V. Sumanth, Standing Counsel of the University
2. Col. C.H. Rao, University Engineer
3. Shri Abhishek Kumar, Deputy Registrar

I. The meeting commenced with the Chairman extending a warm welcome to the members attending the special meeting convened at short notice in the context of recent significant developments like the Government of Telangana deciding to auction 400 acres of land resumed from IMG Academies Bharata, protests that erupted following Government's announcement, and TGIIC's inconsistent clarifications to the media and public on the issue.

The Vice-Chancellor briefed the Council on the important events concerning the land issue:

1. The Vice-Chancellor took the Council through the chronology of events, highlighting the key points culminating with the recent protests by various stakeholders. He gave a quick brief on the allocation of 2300 acres of land free of cost in the Kancha Gachibowli village by the State Government to establish the University way back in 1975 communicated through a letter from the Dy. Secretary Department of Education. This allotment included 200 acres earmarked for the Department of Science and Technology, Government of India. Subsequently, the Government of Andhra Pradesh handed over Ac. 2324.05 Gts. of land to establish the University of Hyderabad in 1975, but no alienation was done formally conferring the title to it in the last 50 years despite the best efforts of the University administration. He further briefed on the significant developments in land matters to date.

2. At the request of the State Government, the Executive Council *inter alia* decided to alienate 400 acres of land in Sy. No.25 in 2003 to the Government of Andhra Pradesh/Sports Authority of Andhra Pradesh (SAAP) to establish a Sports Academy. The land, originally allocated to IMG Bharata, was transferred from the University of Hyderabad to the State Government under a Memorandum of Understanding (MoU), which, among other things, provided for the exchange of land. As per records available, vide the District Collector's proceedings dt. 31/01/2004, permission was accorded to resume the land to an extent of Ac. 534.28 Gts. from University of Hyderabad in survey no. 25 situated in the Kancha Gachibowli Village, Serilingampally mandal and handover advance possession of lands to an extent of Ac. 400-00 Gts. to SAAP immediately for establishing International Sports Academy. The Balance land Ac. 134.28 Gts. in Sy. No. 25 Kancha Gachibowli Village was reserved in the Custody of Mandal Revenue Officer, Serilingampally for A.P. NGOs Employees housing society. In lieu of that Ac. 397.16 Gts. in survey no. 36 and 37 of Gopanpally Village was allocated to University of Hyderabad immediately as compensatory measure.

3. Thus, the State Government handed over AC. 397.16 Gts of land to the University towards partial fulfillment of terms and conditions set forth in MoU. Although these 400 acres of land were handed over to the IMG Academies Bharata Pvt. Ltd in 2004 by the State Government for the construction of the Sports Academy, subsequently it was resumed by

the Government of Andhra Pradesh in 2006. The Legal battles fought by the IMG Bharata on the issue in the High Court of Telangana and the Supreme Court proved infructuous.

4. Following the Supreme Court's ruling, officials from TGIIC met University officials as the land originally allotted to IMG Academies Bharata shares a significant boundary with the University. During their visit, the officials assessed the land's topography, the existing infrastructure built by the University, and the overall land position but exact demarcation of the land was neither proposed nor agreed upon by the University.

5. In 2012, the Collector, Ranga Reddy District submitted a regular alienation proposal in favour of the University vide Lr. No.LC1/3884/2012 dt. 20/11/2012 to the Special Chief Secretary and Chief Commissioner of Land Administration. Further, in 2019 the Additional Secretary (Revenue), Government of Telangana vide a Memo No.35090/Assn. II (1)/2011-15 dated 21/11/2019 addressed to the Collector, Ranga Reddy district sought further information on his proposal to alienate the land in the name of the University. This was in response to the University of Hyderabad's Letter in the year 2016 on the issue of land alienation.

6. The University administration made consistent efforts to get the land alienated in its name by writing letters to the Union Minister of Education and the Chief Minister of Government of Telangana from time to time, besides meeting them personally.

II. Following the Vice-Chancellor's briefing, each member of the Council expressed their viewpoints and sought clarifications on several points:

After this initial discussion among Council members, the Chairman invited the University's Standing Counsel to present a comprehensive analysis based on the agenda, especially from a legal point of view and High Court/ Supreme Court orders in the University's legal battles to protect its land.

III. <u>Presentation by the Standing Legal Counsel</u>:

The Legal Counsel provided a detailed presentation, *inter alia* covering the following points:

- University's legal battles related to land matters and past and ongoing cases.
- The contentions of the university in these cases, highlighting key factors that influenced their outcomes.
- The Counsel provided a comprehensive overview of the case, starting from the State Government's request for land allocation, the signing of the MoU, and subsequent legal issues, including allegations against IMG Academies and concerns raised by the University. The Counsel also pointed out relevant points from a legal perspective, highlighting the

rulings of the High Court and Supreme Court in the cases involving the university as well as that of other similar cases.

The Legal Counsel clarified that following the orders of the Hon'ble High Court of Andhra Pradesh in WP No.24781 of 2006, and the orders of the Supreme Court in SLP No. 9265 of 2024, the ownership of the 400 Acres of land allotted to the university vests with the State Government, preventing the university from obstructing the State Government authorities from carrying out activities on this land. He also referred to arguments made by the University and outcomes in WP No.816 of 2021 in this regard. However, the Counsel noted that there is no physical demarcation of the 400 acres on the ground. Given the practical considerations including built infrastructure, environmental concerns, especially the water bodies and rock formations on the said piece of land, the University may take up with the State authorities to demarcate the land giving due regard to the practical considerations, ecological balance and environmental concerns.

At this juncture, the Registrar intervened to clarify that contrary to the TGIIC's claims in its press release, the University has not agreed to any demarcation of the land yet. University officials had accompanied State Government and TGIIC representatives on a site visit to better understand the practical considerations, topography and environmental concerns involved.

He added that the site visit lasted only a few hours and the university has not signed any document confirming the demarcation. The Registrar further emphasized that the University has repeatedly informed the State Government that, under the University of Hyderabad Act and Statutes, only a duly constituted Executive Council has the authority to make decisions regarding land matters. Therefore, the boundaries of University land cannot be determined in such a casual manner, especially since no entity other than the Executive Council has the legal competence to do so.

Continuing from where he stopped, the Standing Counsel further spelt out the pros and cons of the different legal options available to the University in the background of the Supreme Court's decision to help the Council make the best possible decision, considering the legal implications, risks, and benefits of each option in the interests of the University.

IV. The Council also took note of the University's extensive efforts to protect its land, including legal recourses taken in the Hon'ble High Court and the Supreme Court, whenever deemed necessary or when no other option remained. The Council further acknowledged that the University had sought assistance from the Ministry of Education and that the Hon'ble Minister of Education, Shri Dharmendra Pradhan ji had written to the Hon'ble Chief Minister of Telangana in 2022, requesting his intervention in protecting the land allotted to the University. The Council expressed deep gratitude to the Hon'ble Minister for his initiative and resolved to appeal to

him to escalate the matter to the current Telangana State Government to protect the University's land.

The Council further noted that the University made forceful arguments in several court cases, despite the challenge of formal documentation establishing its right over the land allotted still remaining pending—the core issue that significantly contributed to the setbacks in these cases. In this context, the Counsel noted that while dismissing the Writ Petition No. 3502 of 2009, the Hon'ble High Court clarified that this order cannot be cited as a precedent and observed that: "The Government should avoid allotting any parcel of land that has already been allocated to the University pursuant to the Cabinet decision and in furtherance of a policy decision, and to the best extent possible, safeguard the entire land originally allotted to the University. The Government should ensure that no land of the University is encroached upon, allotted to others, or diminished in any way and see that the original extent of land allocated to the University is preserved."

The Council advised the administration to draw the attention of the State Government to the above observations made by the Hon'ble High Court and request the Government to adhere to these observations in both letter and spirit and expeditiously conclude the Alienation Proposal submitted by the Collector, RR District, in 2012.

V. Thereafter the Council deliberated extensively on land matters, specifically focusing on the following points:

1. <u>Legal Ownership of the 400 Acres of Land resumed by the State Government from IMG Academies Bharata</u>:

   The Council acknowledged that, as a result of the protracted legal proceedings culminating with the judgments of the Hon'ble High Court and Supreme Court, the legal ownership of the 400 acres of land in Sy.No.25 vests with the State Government. The land was originally handed over to the State Government under the MoU, as per the decision of the 126th Executive Council meeting held on 24/12/2003 which inter alia provided for land exchange. The Executive Council of the University *inter alia* agreed to alienate the said extent of land, subject to the Government agreeing to allot an equal extent of land to the University as outlined in the MOU and considering favourably the request regarding the preservation of biodiversity and natural habitat, stated under V.4 below."

   The Council inquired from the Legal Counsel about the legal position and the possibility of filing a writ petition. After considering the pros and cons of various options, the Council resolved that, at this juncture, the University should work closely with the Government to achieve the objective of having the land alienated in favour of the University of Hyderabad. The process of alienation of land in favour of the university was initiated in 2012. Consequently, following the CCLA's letter (Lr. No.

BB1/1839/12 dated 13.09.2012) requesting submission of the alienation proposal for the University as desired by the Hon'ble Governor of Andhra Pradesh, the District Collector, after completing all due formalities, recommended the alienation of 2,185.07 acres of land in favour of the University to the Special Chief Secretary and Chief Commissioner of Land Administration (CCLA). The Council also took note of the State Government's letter of November 2019 in this regard. The Council resolved that the University should work closely with the Government of Telangana and appeal for the alienation of the land in favour of the University in the spirit of the aforesaid transactions, by expediting the process that began in 2012."

2. Engagement with University Alumni in Key Positions in Government: The Council noted with pride that two distinguished alumni of the University, Shri Bhatti Vikramarka Mallu Garu (Hon'ble Dy. Chief Minister, Minister for Finance & Planning, Energy) and Shri D. Sridhar Babu Garu (Hon'ble Minister for IT, Industries & Legislative Affairs), hold key positions in the Government. The Council resolved to request them, as well as the Hon'ble Revenue Minister, Shri Ponguleti Srinivas Reddy Garu, and Hon'ble Chief Minister of Telangana, Shri A. Revanth Reddy Garu, to extend their wholehearted support to the University in resolving this long-standing issue of alienation of University land, particularly during the Golden Jubilee year of the University, which has marked several significant achievements in a short span of 50 years.

   The University has consistently ranked among the top 20 universities out of nearly 1,200 universities in the country. It has also earned the prestigious status of Institution of Eminence (IoE), a recognition awarded to only two other public universities: Delhi University and BHU. With numerous other accolades, such as the first President's Award for the best University of India, the University has not only fulfilled the very purpose for which it was established in Telangana through an amendment to the Constitution of India (Article 371-E), as part of the six-point formula but has also continuously brought pride and glory to the State of Telangana. Not owning the land on which it has been functioning is not tenable now for an Institute of Eminence. Therefore, University EC strongly appealed to the good conscience of Telangana Government to bestow the honor to UoH by giving the ownership of the land on which it has been functioning gloriously for the last 50 years.

3. Demarcation of Boundary: The Council noted that no physical boundaries are demarcating the 400 acres of land on the ground, and the University has not agreed to any demarcation yet. Some members, who are alumni of the University, highlighted the community's emotional connection with the iconic Mushroom Rock and suggested that, while being mindful of practical difficulties, the University may work with State authorities to explore the possibility of retaining this iconic structure. The Council authorized the Vice Chancellor to take

necessary steps for amicable demarcation of the boundaries while safeguarding the University's interests, including the built infrastructure, connectivity, the natural flow of water streams, peacock lake, buffalo lake and rock formations etc. The final demarcation plan should be presented to the Executive Council in its subsequent meeting.

4. Protection of Biodiversity and Natural Habitat: The Executive Council expressed deep concern over the potential use of the 400 acres of land for the creation of infrastructure for IT and other industries. The Council resolved to urge the State Government to take any action on this land parcel only after very careful consideration of the environmental concerns raised by the University community and other stakeholders and recommended that, for any development around the University, the State Government may kindly keep these factors in view. It is pertinent to point out that this area is one of the best-preserved Biodiversity hot-spots in this part of the city.

5. The Council expressed concern over the increasing attempts by private parties, agencies, real estate companies, and other entities to encroach upon University's land. While these parties may not always use fraudulent documents outright, there is a significant risk that they could misuse legitimate University documents. This could include taking valid documents out of context, omitting key information, or selectively presenting them to create a misleading narrative before the Court or other authorities to further their ulterior motives. The Council discussed the potential for both fraudulent use and the improper exploitation of land-related documents by these individuals or organizations. To safeguard the University's interests, it was resolved that all documents related to land matters—except those in the public domain (e.g., court judgments)—shall be classified as "Confidential." These documents will not be disclosed in the interest of the university till the land is fully alienated and registered in favour of UoH.

6. Request from External Agencies for University Land: The Executive Council resolved that the University shall not permit any new earmarking of land at least till the land is alienated in favour of UoH.

Summary of Resolutions:

1. The Executive Council resolved to request the Government of Telangana for the alienation/ registration of the land, as per the details expressed in V.1, in favour of the University at the earliest."

2. The University should prioritize and actively pursue the alienation of land in its favour by the State Government and to achieve this objective, work closely with the State Government to expedite the Alienation Process initiated in 2012 (Lr No. LC1/3884/2012 Dated 20-11-2012). The State Government should be requested to complete the alienation process at the earliest in the Golden Jubilee year of the university.

3. The University, mindful of practical difficulties, may take necessary steps for amicable demarcation of the boundaries while safeguarding its interests as much as possible, including built infrastructure, connectivity, natural flow of water streams, lakes (peacock lake and buffalo lake) and rock formations including mushroom rock etc.

4. The University shall forward all the representations received from various stakeholders on the matters related to the 400 Acres of land to the State Government for their favourable consideration.

5. Every document related to land matters of the University, except those in the public domain (such as court judgments), shall be classified as "Confidential" and shall not be disclosed.

6. The Council authorized the Vice Chancellor to take decisions as deemed appropriate regarding the alienation of land in favour of the University of Hyderabad and place the same before the Executive Council in its subsequent meeting.

The meeting concluded with a sincere vote of thanks.

Minutes approved

Chairman